

did not possess any of the items he listed on the loss form he submitted to the adjuster. Furthermore, Mr. Ronketty is involved in another fraudulent insurance claim, alleging that he was abused by a priest and has joined a class action lawsuit that is expected to pay him over \$200,000. Mr. Ronketty is a thief who profits from making false insurance claims and selling illegal drugs.” (Def. Answer, pg. 2, ¶ 4.)

Declaration

Plaintiff alleges the Marcus Malloy declaration contains hearsay, character attacks, and statements addressing matters unrelated to the causes of action pled in the complaint. As the defendant may plead matters which are not provable under a general or specific denial, but which avoid the action or at least the theory outlined in the complaint, the court will only strike the references that would not fall under any theory of defense. Marcus Malloy alleges to have personal knowledge of facts relevant to this case. Therefore, plaintiff’s motion to strike the Marcus Malloy declaration is denied.

Conclusion

In summary, plaintiff’s motion to strike portions of defendant’s answer is granted, in part. The court orders the lines of defendant’s answer, quoted above, stricken from the record.

20. S-CV-0056317 Nonhprasith, Phonesavanh Lee v. US Bank

Defendants are advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Special Motion to Strike

Defendant John P. Ward moves to strike the first amended complaint, arguing the quiet title claim against him arises from protected activity within the meaning of Code of Civil Procedure section 425.16.

Preliminarily, this motion is effectively unopposed. While plaintiff filed an opposition on April 8, 2026 arguing that this action is subject to an automatic bankruptcy stay, the court issued a ruling on April 21, 2026 noting that an automatic bankruptcy stay applies to actions “against the debtor,” which would not apply to a plaintiff in an action. The court set aside the notice of bankruptcy stay and continued the hearing to permit plaintiff the opportunity to file an opposition. On June 8, 2026, plaintiff filed substantively the same opposition as it had on April 8, 2026, not acknowledging the court’s April 21, 2026 order. As no bankruptcy stay is in place and as plaintiff has had ample opportunity to oppose on the merits and has elected not to, this court will reach the merits of this motion and treat it as effectively unopposed.

Defendant’s request for judicial notice is granted.

A motion brought under Code of Civil Procedure section 425.16, also known as an anti-SLAPP motion, is a procedural remedy designed to dispose of lawsuits that are brought primarily to chill the valid exercise of a party's constitutional right of petition or free speech. (Code Civ. Proc., § 425.16, subd. (a); see also *Sylmar Air Conditioning v. Pueblo Contracting Svcs., Inc.* (2004) 122 Cal.App.4th 1049, 1055–56.) The court may strike individual allegations that constitute protected activity and is not limited to striking entire causes of action. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) In determining whether an action or claim is a SLAPP suit subject to a special motion to strike, the court evaluates first whether the claim arises out of the defendant's protected speech or petitioning activity. Only if the claim arises out of defendant's protected speech or petitioning activity does the court move on to the second prong, to evaluate whether plaintiff can show a probability of success on the merits. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88–89.) Defendant has the burden of proof to show that plaintiff's claims arise from defendant's exercise of free speech or petition rights as defined in Code of Civil Procedure section 425.16(e). (*Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) Such protected speech includes:

(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

(Code Civ. Proc., § 425.16, subd. (e).) “[C]ommunications preparatory to or in anticipation of the bringing of an action” are also protected petitioning activity. (, e.g., *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115; Civ. Code, § 47, subd. (b).) If defendant makes a prima facie showing that the cause of action at issue arises from her constitutionally protected free speech or petition activity, the burden shifts to plaintiff to establish a probability of prevailing on the claim. (*Governor Gray Davis Committee v. American Taxpayers Alliance* (2002) 102 Cal.App.4th 449, 458–59.)

Defendant Ward contends plaintiff's complaint for quiet title is based solely upon communications he sent as an attorney on behalf of his client Velocity Commercial Capital, LLC (“Velocity”) in anticipation of litigation. Defendant presents evidence that on July 13, 2021, plaintiff obtained a loan from Velocity in the amount of \$474,000. (RJN Exh. 1.) Plaintiff defaulted on the loan in 2025, prompting recordation of a notice of default and election to sell. (RJN Exh. 2.) On January 10, 2025, Velocity received a letter from plaintiff that referenced litigation. (Ward Decl., Exh. 3.) In anticipation of litigation, Velocity retained defendant Ward to respond to the letter. (Ward Decl., ¶ 3.) On January 15, 2025, defendant Ward drafted and mailed a letter in to plaintiff advising “This firm represents Velocity” and advising plaintiff to direct all future correspondence to him. (Ward Decl., Exh. 4.) On September 22, 2025, Velocity received a second letter from plaintiff indicating imminent litigation. (Ward Decl., Exh. 5.) Defendant Ward

again responded by letter. (Ward Decl., Exh. 6.) Ward has not asserted any claim to the property and none of the recorded documents have his name. (Ward Decl., ¶ 9; RJN Exhs. 1, 2.) Defendant meets his initial burden on the first prong.

The burden therefore shifts to plaintiff to show a probability of success on the merits. As this motion is unopposed, plaintiff falls short of this burden.

Based on the foregoing, the special motion to strike is granted as to defendant Ward.

Defendant Ward requests attorneys' fees in the amount of \$5,400 pursuant to Code of Civil Procedure section 425.16(c)(1). However, attorneys' fees are not mentioned in the notice of motion. Accordingly, the request is denied without prejudice and defendant Ward may seek an award of attorneys' fees and costs pursuant to Section 425.16(c)(1) by separately noticed motion.

Demurrer to the First Amended Complaint

Defendants Sandie Lawrence, Christopher D. Farrar, Roland T. Kelley, and John P. Ward demur to the first amended complaint filed November 6, 2025 contending the pleading fails to state facts sufficient to constitute a cause of action and the complaint is uncertain and unintelligible pursuant to Code of Civil Procedure section 430.10(e) and (f).

Preliminarily, this demurrer is effectively unopposed. While plaintiff filed an opposition on April 8, 2026 arguing that this action is subject to an automatic bankruptcy stay, the court issued a ruling on April 21, 2026 noting that an automatic bankruptcy stay applies to actions "against the debtor," which would not apply to a plaintiff in an action. The court set aside the notice of bankruptcy stay and continued the hearing to permit plaintiff the opportunity to file an opposition. On June 8, 2026, plaintiff filed substantively the same opposition as it had on April 8, 2026, not acknowledging the court's April 21, 2026 order. As no bankruptcy stay is in place and as plaintiff has had ample opportunity to oppose on the merits and has elected not to, this court will reach the merits of this demurrer and treat it as effectively unopposed.

The demurrer is moot as to defendant John P. Ward in light of the court's above ruling on defendant Ward's special motion to strike. The court will reach the merits of the demurrer as it pertains to the other three demurring defendants.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10, subds. (e), (f).) A pleading is "uncertain" if it is ambiguous and unintelligible. (*Id.* at subd. (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court

may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

A verified complaint for quiet title shall include all following elements:

- (a) A description of the property that is the subject of the action. In the case of tangible personal property, the description shall include its usual location. In the case of real property, the description shall include both its legal description and its street address or common designation, if any.
- (b) The title of the plaintiff as to which a determination under this chapter is sought and the basis of the title. If the title is based upon adverse possession, the complaint shall allege the specific facts constituting the adverse possession.
- (c) The adverse claims to the title of the plaintiff against which a determination is sought.
- (d) The date as of which the determination is sought. If the determination is sought as of a date other than the date the complaint is filed, the complaint shall include a statement of the reasons why a determination as of that date is sought.
- (e) A prayer for the determination of the title of the plaintiff against the adverse claims.

(Code Civ. Proc., § 761.020.)

The court has carefully reviewed the first amended complaint. While it sufficiently alleges a description of the property and a prayer for the determination of plaintiff's title, it does not otherwise satisfy the pleading requirements outlined in Section 761.020. The demurrer is sustained on this basis. (Code Civ. Proc., § 430.10, subd. (e).) Moreover, the lack of factual allegations as to plaintiff's title and any adverse title claimed by any of the named defendants also renders the complaint uncertain within the meaning of Code of Civil Procedure section 430.10(f). The demurrer is also sustained for this reason.

Plaintiff is afforded leave to amend. A second amended complaint, if any, shall be filed and served by July 6, 2026.

Case Management Conference

The court on its own motion schedules this matter for a Case Management Conference on **September 25, 2026 at 9:00 a.m. in Department 1**. Department 1 is located at 101 Maple Street, Auburn, California 95603.